

HOUSE No. 1340

The Commonwealth of Massachusetts

PRESENTED BY:

Marcus S. Vaughn

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to moped liability insurance.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Marcus S. Vaughn</i>	<i>9th Norfolk</i>	<i>1/8/2025</i>

HOUSE No. 1340

By Representative Vaughn of Wrentham, a petition (accompanied by bill, House, No. 1340) of Marcus S. Vaughn relative to moped liability insurance. Financial Services.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to moped liability insurance.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 34J of Chapter 90, as appearing in the 2022 Official Edition, is
2 hereby amended by inserting the following :-

3 “For the purposes of this section, ‘motor vehicle’ shall additionally include mopeds,
4 motorized scooters, or any pedal bicycle with a helper motor or non-pedal bicycle with a motor,
5 automatic transmission, and is capable of a maximum speed of up to 30 miles per hour.”

6 SECTION 2. Section 111D of Chapter 175 is hereby amended by striking out the entire
7 section and inserting in place the following :-

8 “Section 111D. A policy of motor vehicle liability insurance issued under subdivision (b)
9 of clause Sixth of section forty-seven, or an endorsement or rider attached thereto, may provide
10 for the payment of all sums which the insured or his legal representative shall be legally entitled
11 to recover as damages from the owner or operator of an uninsured motor vehicle, moped, or
12 motorized scooter because of bodily injury, sickness or disease, including death resulting

13 therefrom, sustained by the insured, caused by accident and arising out of the ownership,
14 maintenance or use of such uninsured motor vehicle, moped, or motorized scooter. Such policy
15 or endorsement or rider shall provide that determination as to whether the insured or his legal
16 representative is legally entitled to recover such damages, and if so the amount thereof, shall be
17 made by agreement between the insured or such representative and the insurer or, if they fail to
18 agree, by arbitration. The provisions of section one hundred and eight shall not apply to any such
19 policy or endorsement or rider providing for the payment of the sums permitted by this section.”